

ANALYSIS

Failure of self regulation of UK alcohol advertising

Although the content of alcohol advertisements is restricted, **Gerard Hastings and colleagues** find that advertisers are still managing to appeal to young people and promote drinking

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Research has established that alcohol advertising,¹⁻³ like that for tobacco⁴ and fast food,⁵⁻⁷ influences behaviour. It encourages young people to drink alcohol sooner and in greater quantities. From a public health perspective, advertising of alcohol should clearly be limited. The United Kingdom has opted for a system of self regulatory controls that focuses primarily on the content of advertisements, with some limitations on the channels that can be used. This is overseen by the Advertising Standards Authority, through the Committee of Advertising Practice, which represents the interests of advertisers, agencies, and media owners.

As part of its alcohol inquiry, the House of Commons health select committee wanted to explore the success of self regulation. It obtained a large number of internal marketing documents from alcohol producers and their communications agencies in order to examine the thinking and strategic planning that underpin alcohol advertising and hence show not just what advertisers are saying, but why they are saying it. Here we present the key insights to emerge.

Selection of documents

Because alcohol advertising is so extensive (around £800m (€900m; \$1.3bn) a year)⁸ it was not possible to examine documents from all relevant companies. Requests were therefore sent to only four producers, chosen for their profile, and their respective communications agencies; and they were asked to send documents relating to just five brands out of the dozens on their books for 2005-8 (table 1⇓). We analysed the documents on behalf of the committee.

Although the sample is small, the requests resulted in thousands of pages of paper documents and nearly three gigabytes of electronic ones. These comprised contact reports between client and agency, client briefs, creative briefs, media briefs, media schedules, advertising budgets, and market research reports (box 1).

We conducted a thematic analysis of the documents. We initially looked at four themes that are banned by the advertising code of practice (box 2) as well as sponsorship and new media.

Targeting and appealing to young people

Upcoming generations represent a key target for alcohol advertisers. Although the documents mainly refer to this group as starting at the legal drinking age (18 years), this distinction is sometimes lost. Thus market research data on 15 and 16 year olds are used to guide campaign development and deployment,^{w5} and it is clearly acknowledged that particular products appeal to children (Lambrini, for instance, is referred to as a “kids’ drink”^{w7}). Many references are made to the need to recruit new drinkers and establish their loyalty to a particular brand: WKD, for instance, wants to attract “new 18 year olds,”^{w8} and Carling takes a particular interest in the fact that the Carling Weekend is “the first choice for the festival virgin,” offering free branded tents and a breakfast can of beer.^{w9}

Campaigns aspire to be associated with and appeal to youth: Smirnoff Ice wants to “become the most respected youth brand (overtaking Lynx [deodorant]).”^{w10} New media channels are used because they will appeal to and engage young people, and Lambrini’s 2007 television campaign set out to be “a cross between myspace and High School the [sic] Musical.”^{w11}

University students are another focus. A Smirnoff presentation says, a “great place to create excitement and drive recruitment is within the student community,”^{w12} and Carling wanted a “greater focus on students as a core recruitment audience.” Carling’s aim turned into a proposal to produce a magazine for first year students—including those at Scottish universities, where a significant proportion of freshers are under the legal drinking age.

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References to internal documents (w1-w47) (see <http://www.bmj.com/content/340/bmj.b5650?tab=related#datasupp>)

Box 1: Types of documents obtained from advertising agencies

Client-agency contact reports—Minutes of meetings between the advertising agency (usually represented by a member of the client service team such as an account executive) and the advertiser

Client brief—Documents prepared by the advertiser to tell the agency about a proposed campaign

Creative brief—The agency's response to the client brief and used to guide the creative team internally

Media brief—Used to guide the media buying, including channel selection and targeting strategy

Media schedule—Used to monitor implications of the media strategy; outline when and where the advertising has been placed

Advertising budgets—Give details of spend over time and across media

Market research reports—All modern advertising is subjected to rigorous consumer research throughout its development and use to guide development, test campaigns before transmission, and evaluate effectiveness afterwards

Links to other communications—Mass media advertising is linked to other forms of communication to produce a synergistic effect, such as point of sale, sales promotions, pack design, direct mail, loyalty schemes, merchandise

Links to the marketing strategy—Communications of all sorts have to fit in with the rest of the marketing strategy, especially product formulation, pricing, and distribution.

Box 2: Regulatory code on advertising alcoholic drinks^{w1-w4}

Young people and the next generation—Advertisements must not appeal strongly to people under 18 or be associated with, or reflect, youth culture and no-one who is, or appears to be, under 25 years old may play a significant role in advertisements.

Drunkenness and excess—Advertising must not link alcohol with brave, tough, unruly or daring people or behaviour; nor should it encourage irresponsible, antisocial or immoderate drinking (whether in terms of style or amount). References to, or suggestions of, buying repeat rounds of drinks are not acceptable—including any suggestion that other members of the group will buy any further rounds. Advertisements must not suggest that refusal is a sign of weakness or that a drink is to be preferred because of its alcohol content and must not place undue emphasis on alcoholic strength

Sociability and social success—Advertising must not link drinking to the social acceptance or success of individuals, events, or occasions or imply that it can enhance an individual's popularity, confidence, mood, physical performance, personal qualities, attractiveness or sexual success

Masculinity and femininity—Advertising must not link drinking with enhanced attractiveness, masculinity or femininity, nor with daringness, toughness, bravado, challenge, seduction, sexual activity, or sexual success

Attitudes to drunkenness and potency

Advertisers are well aware that some groups drink irresponsibly. Brand strategy documents and campaign briefs abound with references to unwise and immoderate drinking.^{w14-w16} Far from regretting or avoiding any promotion of this behaviour as the codes require, producers and agencies analyse it for market opportunities. Thus Lambrini's qualitative research with young women provided respondents with stimulus themes such as "getting pissed," "one night stands," and "drinking games" to help them discuss their experiences with the product (fig 1↓). Increasing consumption is a key promotional aim, contradicting the claim that the intention is simply to encourage brand switching (box 3).

Drunkenness is also linked to high alcoholic strength—any reference to which is forbidden by the codes. Yet Smirnoff has worked out that "potency can be communicated in a number of ways," including by reference to the drink being "ten times filtered or triple distilled," noting that "for consumers both result in increased purity and therefore increased strength."^{w21} This theme was given heavy coverage on the Smirnoff website.^{w22}

Association with social success

Advertisers are not allowed to suggest that alcohol can enhance the social success of either an individual or an event—yet the documents are full of references to brands doing both things. Thus Carling is described as a "social glue"^{w23} by its promotion team, and the brand overtly seeks to "own sociability," as this is the way to "dominate the booze market."^{w24} Lambrini is described as a "social lubricant"^{w25} in a creative brief for a summer campaign, and the "brand key" for the product, produced in 2008, positions it as "the perfect start to the night," with the promise that the drink is "the best way to make your night light, bubbly and full of flavour."^{w26} Similarly, the most important message for WKD to convey to consumers is that the brand "is all about having a laugh with your mates."^{w27}

Efforts are also made to associate brands with personal transformation and enhancement. Lambrini can "transform you into the glamour pussies you know you should be."^{w26}

Sexual attractiveness

Suggesting that alcohol can enhance either masculinity or femininity is proscribed, yet the documents are full of references to both. Thus the need to "communicate maleness and personality"^{w28} is noted as a key communications objective for WKD, and Diageo highlights the brand values and personality of Smirnoff Black as "urbane," "masculine," and "charismatic"; dictionary definitions of these characteristics are accompanied by photographs of George Clooney, Bono, and Ewan McGregor.^{w29} Masculinity is often equated with drinking too much (as in the Carling commandments, which include "Thou shalt never desert thy mates in drunken distress" and "Thou shalt never miss a round"^{w30}), alcoholic strength ("potency is a key area to delivering masculinity"^{w31}), and bravado (as with Sidekick's "Kick starting the night . . . macho competitiveness . . . how much can you take?"^{w32}).

Similar sexual stereotypes and appeals are found in campaigns aimed at women. In 2006, Lambrini also teamed up with Pretty Polly tights to run a promotion to find the "Lambrini girl" with "the UK's sexiest legs."^{w33 w34}

Power of sponsorship

Although sponsorship is not specifically included in the advertising code, it is a large and powerful part of alcohol promotion. Sponsorship is a way of raising brand awareness, creating positive brand attitudes, and building emotional connections with consumers. A Carling document about a music sponsorship campaign sums this up neatly: "Ultimately, the band are the heroes at the venue and Carling should use them to 'piggy back' and engage customers [sic] emotions."^{w35}

Box 3: Promotion of increased consumption

- Smirnoff has identified the “9 pm switch” (when young men start to feel bloated with beer) as an opportunity to target male drinkers aged 18–29^{w17} and seeks “to increase consumption of vodka by males within the mid-tempo part of the evening.”^{w18}
- WKD is promoted “as a change of pace when beer is getting too much for me”^{w19}
- Lambrini wants “more light users that they can move up the consumption scale”^{w20}
- Sidekick can be “used to crank up the evening, accelerate the process of getting drunk with less volume of liquid”^{w15}

Although the codes prohibit any link between alcohol and youth culture or sporting achievement, the documents discuss in detail sponsorship deals with football, lads’ magazines, and music festivals. Often the intent of such sponsorship is specifically to reach young people: Carling’s sponsorship of the English football league cup (Carling cup) is a way to “recruit young male (LDA [legal drinking age]-21) drinkers into the brand.”^{w36} Events are chosen to show how well the brand understands and relates to young people: as one Carling executive expresses it, “They [young men] think about 4 things, we brew 1 and sponsor 2 of them.”^{w37}

Sponsorship is not explicitly covered by the codes, so producers can take advantage of the resulting regulatory ambiguity, as box 4 shows.

Use of new media

Digital media—including social networking sites, email, viral marketing, and texts—are a fast growing channel for alcohol advertising. They offer advertisers interactivity and increased creative freedom and are less regulated than traditional media. For example, the only control on access to alcohol related sites is the need for the user to provide an adult date of birth, which is easily side stepped. Furthermore, viral marketing campaigns are designed to encourage young people to pass on messages to their friends, with no means of controlling who receives them. The aim is to gain credibility by making it seem as if the message is from a trustworthy friend (“It should look like it’s come from your mate, but is infact [sic] Carling branded”^{w41}). Similarly, campaigns promoting girls dancing the “Lambrini” have resulted in many self filmed imitations—often featuring girls who appear to be under the legal drinking age—being posted on the company’s and various social networking sites.

One producer recognised that this presents a dilemma. An evaluation of Smirnoff’s Facebook^{w42} presence showed that almost three quarters of members of Smirnoff related groups belonged to groups where there is a significant risk of breaching the company’s internal marketing code (for example, as a result of depicting or encouraging irresponsible drinking); nevertheless, Smirnoff continues to do all it can to boost its presence on the site. Others are less reticent and welcome the fact that new media “will allow us the most creative freedom,”^{w43} and give access to ““Young and Energised” consumers who engage in new technologies and gadgets.”^{w44}

Inadequate regulation

The documents we analysed show that attempts to control the content of alcohol advertising have two systemic failings. Firstly, the sophisticated communications and subtle emotional concepts such as sociability and masculinity that comprise modern advertising (and sponsorship) often defy intelligent analysis by the regulator, especially when the thinking and strategising that underpins them remain hidden (box 5). Secondly, producers and agencies can exploit the ambiguities in the codes and push the boundaries of both acceptability and adjudication.

The second problem of pushing the boundaries is illustrated by Lambrini’s tenacious attempts to retain the strapline “Girls just wanna have fun” in the face of repeated advice from the regulator that it was “targeting young girls, and promotes getting pissed” and was “unacceptable.”^{w46} Only when the strapline appeared in newspaper coverage of the death of a young woman in an incident that occurred after she had been drinking Lambrini did the company consider disassociating themselves with it.

Tightening the rules

The UK needs to tighten both the procedures and scope of the regulation of alcohol advertising. In terms of procedures, regulation should be independent of the alcohol and advertising industries, matching best practice in other fields such as financial services and professional conduct. In addition, young people should be formally involved in the process—the best people to judge what a particular communication is saying are those in the target audience. Finally, all alcohol advertisements should be vetted, not, as at present, just those for broadcast.

Turning to scope, sponsorship must be covered by the regulations, and digital media should also come under much greater scrutiny. In addition, particular efforts should be made to protect children from alcohol advertising (box 6).

The current problems with UK alcohol promotion are reminiscent of those seen before tobacco advertising was banned, when attempts to control content and adjust targeting simply resulted in more cryptic and imaginative campaigns. Indeed David Abbott, a leading advertiser of the time, argued that the codes were in fact acting as a stimulus, not a constraint, on creative imagination and that the only solution was an outright ban. History suggests that alcohol advertisers are, appropriately enough, drinking in the last chance saloon.

Contributors and sources: The authors all have a long term research interest in examining critically the role of marketing in society. Previous work has included systematic reviews of the impact of food marketing (GH, MS) and alcohol advertising (GH, KA) on children, most notably through a large NPRI grant. OB is currently studying alcohol cultures and new media, while TA and TF have an interest in business ethics and regulation.

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- 1 Anderson P, de Bruijn A, Angus K, Gordon R, Hastings G. Impact of alcohol advertising and media exposure on adolescent alcohol use: a systematic review of longitudinal studies. *Alcohol Alcoholism* 2009;44:229–43.
- 2 Booth A, Meier T, Stockwell T, Sutton A, Wilkinson A, Wong R, et al. Independent review of the effects of alcohol pricing and promotion. Part A: systematic reviews. project report for the Department of Health, September 2008. www.dh.gov.uk/prod_consum_dh/groups/dh_digitalassets/documents/digitalasset/dh_091366.pdf.
- 3 Smith LA, Foxcroft DR. The effect of alcohol advertising, marketing and portrayal on drinking behaviour in young people: systematic review of prospective cohort studies. *BMC Public Health* 2009;9:51.
- 4 Lovato C, Linn G, Stead LF, Best A. Impact of tobacco advertising and promotion on increasing adolescent smoking behaviours. *Cochrane Database Syst Rev* 2003;(4):CD003439.

Box 4: Exploiting sponsorship

WKD sponsored *Nuts* (a lads' magazine with explicit sexual content) football awards. During the select committee evidence sessions WKD's communication agency denied that this transgressed rules prohibiting the association of alcohol with sporting success or sex but offered no clear explanation about why it did not³⁸.

Lambrini sponsors *Coleen's Real Women*, a reality television show in which Coleen Rooney searches for "everyday women to feature as the faces of major brands."³⁹ This was broadcast on ITV2 despite the fact that Mrs Rooney was only 23 at the time (and therefore could not have been used in a conventional advertisement) and the regulator's warning that it was "very likely to breach the Code."⁴⁰

Box 5: Hidden messages of Carling's "belong" advertisement

The advertisement featured a flock of starlings that gradually came together to reveal the word belong in the Carling logo. The Advertising Standards Agency received complaints from professionals and the general public that the advertisement breached the code but rejected them saying that it "did not imply alcohol contributed to the popularity of an individual or the success of a social event"⁴⁵.

Analysis of Carling documents supports the complaint⁴⁶:

The pitch is described as: "Carling celebrates, initiates and promotes the togetherness of the pack, their passions and their pint because Carling understands that things are better together," which splits into "3 Aspects of Belonging":

- Initiation: Expressions of the moment when an individual joins a group and finds a happy home in the pack—the moment of belonging
- Celebration: An expression of the sheer joy of belonging
- Contagion: An expression of the magnetic power of the group—the power of belonging

A document describing the underpinning of the marketing strategy states "Broadly speaking each piece of communication will either celebrate 'Join Us' by championing the benefit of togetherness or facilitate 'Join Us' by providing and enhancing experiences where togetherness is key."⁴³

Box 6: Proposals to protect children and young people from alcohol advertising

- Billboards and posters should not be located within 100 m of a school
- A 9 pm watershed should be introduced for television advertising. Cinema advertising for alcohol should be restricted to films classified as 18
- TV and radio advertisements for alcohol should be restricted to a maximum of 25% of total advertising and no more than two alcohol advertisements should appear in one commercial break
- No medium or event should be used to promote alcohol if more than 10% of its audience or readership are 10-17 years of age
- Alcohol promotion should not be permitted on social networking sites
- Age restrictions should be required on any website that includes alcohol promotion—this would cover sites of those receiving alcohol sponsorship and corporate alcohol websites
- Efforts should be made to limit the promotion of alcohol on university and college campuses

5 Hastings GB, Stead M, McDermott L, Forsyth A, MacKintosh AM, Rayner M, et al. Review of research on the effects of food promotion to children—final report and appendices. 2003 www.food.gov.uk/news/newsarchive/2003/sep/promote.

6 Institute of Medicine. Food marketing to children and youth: threat or opportunity? Washington, DC: Institute of Medicine of the National Academies, 2006.

7 Cairns G, Angus K, Hastings G. The extent, nature and effects of food promotion to children: a review of the evidence to December 2008. Geneva: WHO, 2009.

8 Cabinet Office. Strategy unit alcohol harm reduction project: interim analytical report. 2003:129. www.cabinetoffice.gov.uk/media/cabinetoffice/strategy/assets/su%20interim_report2.pdf.

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Table

Table 1| Sources of documents studied

Producer	Brand	Communications agency
Beverage Brands	WKD (an alcopop)	Big Communications Bray Leino PR Five by Five (digital)
Diageo	Smirnoff vodka	AKQA JWT
Halewood International	Lambrini (a perry) Sidekick shots	BJL Cheethambell JWT
Molson Coors Brewing Company	Carling	Beattie McGuinness Bungay (BMB)

Figure



Lambrini storyboards used during company market research^{w14}